

BEFORE THE FEDERAL MARITIME COMMISSION

Washington, D.C. Docket No. 25-15

**RESPONDENT'S REPLY TO COMPLAINANT'S OPPOSITION TO
MOTION TO DISMISS AND FOR SUMMARY JUDGMENT**

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Respondent Wallenius Wilhelmsen Ocean AS (“WWO” or “Respondent”), by and through its attorneys, Clyde & Co US LLP, pursuant to the revised Scheduling Order dated January 21, 2026 (Dkt. No. 13), the Order Addressing Filing Deficiencies and Extending Schedule dated April 20, 2026 (Dkt. No. 17), and the Initial Order dated August 5, 2025 (Dkt. No. 6), respectfully submits its Reply to Complainant Worldwide Nexus Logistics, LLC’s (“WNL” or “Complainant”) Opposition to Respondent’s Motion to Dismiss and for Summary Judgment (Dkt. No. 25), in further support of Respondent’s Motion to Dismiss or for Summary Judgment (Dkt. Nos. 21 and 24).

Complainant’s opposition fails to refute any of the independent grounds which Respondent’s motions demonstrate require dismissal of the instant claims. Respondent replies in respect to each ground below:

First, Complainant cites no case law or factual basis to distinguish the Commission’s precedent that a singular documentation error, as alleged here, fails to state a plausible claim under Section 41102(c) of the Shipping Act upon which relief can be granted. *See Crocus Invs., LLC v. Marine Transp. Logistics, Inc.*, 2021 WL 3732849, at *4 (FMC Aug. 18, 2021) (“§ 41102(c) is not violated by a single act or omission (even if unjust or unreasonable), but rather applies to conduct that is normal, customary, and continuous”); *A.N. Deringer, Inc. v. Marlin Marine Servs., Inc.*, 1990 WL 427469, at *4 (FMC Nov. 14, 1990) (“If [Respondent] did act improperly, only the existence of an isolated error has been demonstrated. Nothing in the record casts light upon its

regulations or practices, and this constitutes a fatal flaw in [Complainant's] case"). Instead, Complainant repeats its baseless attempts to mischaracterize the documentation error as conduct other than an isolated occurrence. In doing so, Complainant wholly ignores that the Commission has already ruled that § 41102(c) requires a practice that is "normal, customary, and continuous," not a single act or omission. Complainant identifies no evidence that Respondent engaged in similar conduct before or after the subject voyage. Nor does Complainant offer any evidence of a company policy, procedure, or recurring manifest issue. Indeed, Complainant's own sworn testimony establishes just the opposite. *See* RX71-72; RX77-78.

Second. Complainant fails to show any genuine issue of material fact. Rather than disputing Respondent's cited evidence, Complainant argues that Respondent has not proven the absence of other incidents. However, the burden rests with Complainant, not Respondent, to establish the existence of a qualifying practice under § 41102(c). *See MAVL Capital Inc. v. Marine Transport Logistics, Inc.*, 2022 WL 2209421, at *3 (FMC June 10, 2022) ("Complainants bear the burden of proving their allegations by a preponderance of the evidence").

Mere speculation that other incidents might exist cannot negate Complainant's own admissions that it is unaware of any prior or subsequent manifest errors and that it possesses no evidence of any history of such conduct. Complainant's Opposition thus fails to controvert the showing by Respondent that no genuine issue of material fact exists that the alleged incident was not part of Respondent's "normal, customary, and continuous" practice. *See, e.g., Smith v. Washington Metro. Area Transit Auth.*, No. CV 24-3599 (ABJ), 2026 WL 592597, at *3 (D.D.C. Mar. 3, 2026) (granting summary judgment where Plaintiff's opposition to summary judgment motion included vague statements that summary judgment was inappropriate because issues of

material fact existed, but did not identify what those issues were or which facts were genuinely disputed).

Straining to raise a factual issue, Complainant misstates the record by alleging that “Respondent’s own representatives acknowledged the omission had occurred, represented that Respondent would bear the resulting expenses,” *See* CX509-510. (Dkt. No. 25 at 3) However, the cited document is an email from Ian Taylor in Peru to Respondent, in which Ian Taylor stated: “We sincerely apologize for all inconveniences caused and please be sure that *we* bear all expenses involved and *we* are working and taking control so that it will not happen again.” *Id.* (Emphasis added). The email thus refers by “we” to Ian Taylor, *not* to Respondent as Complainant alleges. Further, Complainant’s admissions in any event preclude any conceivable dispute of a material fact necessary to establish a “practice” under Section 41102(c). Moreover, Complainant filed no response to Respondent’s Statement of Material Facts (Dkt. No. 24) as required by 46 C.F.R. § 502.70(b) and the Initial Order (Dkt. No. 6 at 5, ¶ 20); thus, such facts should be deemed admitted in accordance with paragraph 20 of the Initial Order. *See also* FED. R. CIV. P. 56(e)(2).

Third, Complainant fails to refute Respondent’s showing that the Commission lacks jurisdiction. Although Complainant attempts to mischaracterize the case as one involving Respondent’s handling and transmission of manifest information under the Shipping Act rather than a claim for cargo loss under the Carriage of Goods by Sea Act (“COGSA”), Complainant seeks damages arising solely from the alleged non-delivery of cargo and asserts no injury independent of the alleged cargo loss.

The Commission has long recognized that it lacks jurisdiction over such cargo loss claims. *See A.N. Deringer*, 1990 WL 427469, at *5 (allowing a Complainant to repackage a cargo loss claim as a Shipping Act violation “would constitute a wholly unwarranted frustration of

Congressional intent”). As previously explained, Complainant neither pleads any facts nor alleges any evidence that could establish a claim under the Shipping Act. Since Complainant alleges no plausible Shipping Act claim, no jurisdictional basis allows the Commission to adjudicate this case. Allowing this claim to proceed under § 41102(c) would permit Complainant to circumvent COGSA’s one (1)-year time bar through creative pleading, which is the same result the Commission rejected in *A.N. Deringer*.

Fourth, Complainant fails to dispute the facts underlying Respondent’s statute-of-limitations defense. Complainant does not deny that the cargo should have been delivered in January 2024; that this proceeding was not commenced until July 2025; that no suit was filed within one year; and, that no extension of the contractual or statutory limitations period was obtained. *See* RX78.¹

Instead, Complainant reasserts in vague terms its mischaracterization of the claim. As the time-bar argument rests on undisputed facts, Complainant failed to bring suit within the one-year period prescribed by the WWO Terms and by COGSA; the claim is thus time barred as a matter of law. *See* RX100; 46 U.S.C. § 30701 note § 3(6) (“In any event the carrier and the ship shall be discharged from *all liability in respect of loss or damage* unless suit is brought within one year after delivery of the goods or the date when the goods should have been delivered”) (emphasis added).

Fifth, Complainant fails to refute Respondent’s showing that Complainant lacks standing and shows no evidence it sustained a recoverable loss from non-delivery of the cargo. Complainant concedes that it never owned the cargo and does not dispute that it received no assignment or subrogation rights from any cargo owner. Nor does Complainant dispute that it reimbursed no

¹ Each bill of lading issued for the three shipments expressly incorporates the WWO Terms, which state that, “[w]here compulsorily applicable, this contract is governed by COGSA.” CX520; CX522; CX524; RX100.

customer, refunded no freight charges, and incurred no out-of-pocket loss. *See* RX 45, RX 65, RX92-94.

Complainant instead argues, without evidentiary support, that it possessed a commercial interest in transporting the shipments. That mere assertion proves no actual injury as required by 46 U.S.C. § 41305(b); nor does it overcome the undisputed evidence demonstrating the absence of any cognizable damages. *See OJ Commerce, LLC, Complainant v. Hamburg Sudamerikanische Dampfschiffahrts-Gesellschaft A/S & CO. KG and Hamburg Sud North America, Inc.*, 2023 WL 3969857, at *2 (FMC June 7, 2023).

Sixth, Complainant provides no credible response to Respondent’s request for attorney’s fees. Complainant continues to pursue allegations foreclosed by controlling Commission precedent, contradicted by Complainant’s own sworn testimony, and unsupported by evidence of essential elements of its claim. Complainant fails to identify any authority supporting its position that a single, isolated manifest error can constitute a “normal, customary, and continuous” practice under Section 41102(c). Nor does Complainant address its admissions that it lacks evidence of any prior or subsequent manifest errors, any company policy regarding incorrect manifests, any ownership interest in the cargo, or any actual pecuniary loss. Instead, Complainant rehashes the same arguments that Respondent has already demonstrated lack merit. Respondent has been forced to incur substantial time and expense reviewing over five hundred (500) pages of appendix that are irrelevant to Complainant’s factual assertions as well as responding to two (2) briefs and two (2) statements of fact. Accordingly, Complainant has failed to rebut Respondent’s showing that an award of attorney’s fees is warranted under the circumstances. *See* 46 C.F.R. § 502.254(a) (“the Commission may, upon petition, award the prevailing party reasonable attorney fees”).

Last, Complainant fails to refute Respondent's showing that the Complainant's filings violated the applicable procedural rules; and such deficiencies continue with its latest filings. For example, Complainant failed to include a Table of Contents and Table of Authorities in the reply papers, in violation of 46 C.F.R. § 502.214(d). Complainant's Responses to Respondent's Proposed Findings of Fact in paragraphs 17 and 22 lack any citation of evidence or authority (Dkt. No. 26).

In sum, Complainant's opposition refutes none of the controlling legal authorities cited by Respondent, fails to dispute or controvert the material facts established in the record, and fails to address the evidentiary and procedural deficiencies identified by Respondent. Rather, Complainant seeks to mischaracterize an isolated documentation error as a Shipping Act violation while ignoring controlling precedent, undisputed testimony, applicable contractual limitations provisions, procedural defects, and Respondent's request for fees. Complainant has failed to rebut any of Respondent's independent grounds for dismissal; the Complaint thus should be dismissed with prejudice, summary judgment should enter in Respondent's favor, and Respondent should be awarded such other relief as the Commission deems appropriate.

CONCLUSION

For the forgoing reasons, Respondent respectfully requests that the Commission dismiss all claims against it, as a matter of law, and award Respondent attorney's fees, interest, costs, and such other and further relief as may be deemed just and proper, upon timely petition.

Dated: New York, New York
June 22, 2026

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CERTIFICATE OF SERVICE

I certify that, on June 22, 2026, a true and correct copy of the foregoing Respondent's Reply to Complainant's Opposition to Motion to Dismiss and for Summary Judgment was filed via electronic mail with the Secretary of the Federal Maritime Commission and a copy was served via electronic mail on the following parties:

Jean C. Lopez

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Managing Director and Owner, Worldwide Nexus Logistics, LLC

Dated: New York, New York
June 22, 2026

By: /s/ John R. Keough
John R. Keough